

LEGAL NOTICE

Under Section 80 of the Code of Civil Procedure, 1908

From:

Mr. Rajan Mehta
Proprietor, Mehta Trading Co.
Shop 7, Crawford Market, Mumbai 400001
(Notice-giver / prospective Plaintiff)

To:

Sterling Retail Ventures Pvt Ltd
CIN: U52100MH2018PTC311558
12, Mittal Tower, Worli, Mumbai 400018
(Noticee / prospective Defendant)

Date: 05 September 2023

Under and in terms of Section 80 of the Code of Civil Procedure, 1908, I hereby give you Sixty (60) days' notice of my intention to institute a suit for the recovery of **INR 12,45,000/- (Rupees Twelve Lakhs Forty-Five Thousand only)**, together with interest at 18% per annum from 01 July 2023 until realisation, on the following grounds:

1. Between 01 April 2023 and 30 June 2023, the Notice-giver supplied dry-groceries and packaged consumables to the Noticee pursuant to Purchase Orders PO-2023-0417, PO-2023-0512 and PO-2023-0631, aggregating INR 12,45,000/-.
2. Goods were delivered and acknowledged under Goods Receipt Notes GRN-1188, GRN-1244 and GRN-1309; the Noticee has failed to make payment within the agreed 30-day credit period.
3. By an email dated 15 July 2023, the Notice-giver called upon the Noticee to clear the outstanding dues; the Noticee acknowledged the debt but failed to pay.
4. The non-payment constitutes breach of contract, entitling the Notice-giver to interest under Sections 73 and 74 of the Indian Contract Act, 1872.

In the premises, you are hereby called upon to pay the aforesaid sum of INR 12,45,000/- together with interest at 18% p.a. within Sixty (60) days from the receipt of this notice. Failing payment, I shall institute a suit in the Hon'ble Bombay City Civil Court for recovery of the said amount with interest and costs, without further reference.

For Mehta Trading Co.

Rajan Mehta, Proprietor

Through: Adv. K. Deshmukh, Counsel

TEST BENCHMARK: Section 80 CPC notice tied to a Contract Act / specific-relief recovery claim. Upload into a Matter to test Writer agent's ability to draft a Commercial Civil Suit and Fact Reviewer's verification of the 60-day statutory waiting period and the debt amount.